

[Administrative Code - Local Implementation - California Environmental Quality Act]

Ordinance amending the Administrative Code to simplify and streamline procedures for local compliance with the California Environmental Quality Act (CEQA), including removing shadow analysis as a specific type of environmental impact, reducing the time to appeal CEQA determinations to the Board of Supervisors from 30 to 15 days, and removing some procedures for environmental documents that are not required by CEQA; to implement recent changes in state law regarding the timing of compliance with CEQA; and affirming the Planning Department's determination under CEQA.

NOTE: **Unchanged Code text and uncodified text** are in plain Arial font.
Additions to Codes are in *single-underline italics Times New Roman font*.
Deletions to Codes are in ~~*strikethrough italics Times New Roman font*~~.
Board amendment additions are in double-underlined Arial font.
Board amendment deletions are in ~~Arial font~~.
Asterisks (* * * *) indicate the omission of unchanged Code subsections or parts of tables.

Be it ordained by the People of the City and County of San Francisco:

Section 1. Environmental Finding.

The Planning Department has determined that the actions contemplated in this ordinance comply with the California Environmental Quality Act (California Public Resources Code Sections 21000 et seq.). Said determination is on file with the Clerk of the Board of Supervisors in File No. ____ and is incorporated herein by reference. The Board affirms this determination.

Section 2. General Findings.

1 (a) The California Environmental Quality Act (California Public Resources Code
2 Sections 21000 et seq., "CEQA") and the guidelines for its implementation (California Code of
3 Regulations Title 14, Chapter 3, Sections 15000 et seq., "Guidelines") mandate that public
4 agencies consider the environmental impacts of their projects and adopt feasible mitigation
5 measures and/or alternatives to address any significant impacts.

6 (b) CEQA mandates that public agencies with the primary responsibility for carrying
7 out or approving a project which may have significant impacts on the environment, known as
8 lead agencies, adopt procedures to implement CEQA. Such procedures must be consistent
9 with CEQA.

10 (c) The Board of Supervisors adopted procedures for the local implementation of
11 CEQA in Chapter 31 of the Administrative Code. The Board delegated authority to the
12 Planning Department, and specifically the Environmental Review Officer, to undertake CEQA
13 review for the City, as one lead agency.

14 (d) Chapter 31 has been amended from time to time to reflect changes in CEQA
15 statutory and case law.

16 (e) In 2023, the Legislature passed Assembly Bill 1633 (A.B. 1633). AB 1633
17 amended the Housing Accountability Act (Government Code Section 65589.5) to include in
18 the definition of "disapproval" a jurisdiction's failure to complete CEQA review within certain
19 time frames, under specified circumstances.

20 (f) In 2023, the Board of Supervisors adopted the 2022 Housing Element, which
21 includes Action 8.5.6. The action requires the City to identify, within its local CEQA
22 procedures, any requirements that go beyond the CEQA statute and state guidelines, and to
23 amend Chapter 31 to modify or eliminate the identified requirements while continuing to
24 satisfy CEQA.

25 (g) In 2023, the California Department of Housing and Community Development

1 issued its San Francisco Housing Policy and Practice Review, which identifies concerns with
2 San Francisco's CEQA practice and sets out required actions. Required Action 2.2 compels
3 the City to eliminate additional requirements for supplemental studies not required by CEQA,
4 such as shadow studies.

5 (h) In 2025, the Legislature passed Senate Bill 131 (S.B. 131), which notes that while
6 CEQA "provides communities across California with important safeguards against projects like
7 fossil fuel plants and warehouses that have caused real environmental harm to residents of
8 the state," at the same time "too often it has resulted in delays to essential projects that are
9 key to solving the state's housing crisis and to strategic development that is necessary to
10 maintain California's position as the fourth largest economy in the world." The law admonishes
11 that CEQA should not be used to delay a project for reasons unrelated to environmental
12 protection.

13 (i) On _____, the Planning Commission adopted Resolution No. _____, finding that
14 shadow is not a physical environmental effect under CEQA because its impacts are
15 subjective, variable, dependent on personal preference and the weather, and can have both
16 positive and negative health implications. It is the intent of the Board of Supervisors to amend
17 Chapter 31 to remove shadow as a topic to be considered in local CEQA review. Proposition
18 K, the Sunlight Ordinance, as implemented through Planning Code Section 295, will continue
19 to protect sunlight on Recreation and Parks Department properties by ensuring that new
20 construction does not adversely affect public open spaces.

21 (j) It is the intent of the Board of Supervisors to amend Chapter 31 to reflect the
22 timelines imposed by A.B. 1633 and simplify local compliance with CEQA in accordance with
23 state mandates and guidance, while maintaining opportunities for robust public participation
24 and upholding the City's commitment to a safe and healthy environment.

25 Section 3. Chapter 31 of the Administrative Code is hereby amended by revising

sections 31.02, 31.03, 31.04, 31.05, 31.07, 31.08, 31.09, 31.10, 31.11, 31.12, 31.13, 31.14, 31.15, and 31.16; deleting section 31.19; and renumbering sections (new number underlined) 31.20 (31.19), 31.21 (31.20), 31.22 (31.21), 31.23 (31.22), and 31.24 (31.23), to read as follows:

ARTICLE I: GENERAL PROVISIONS

SEC. 31.02. POLICIES AND OBJECTIVES.

The basic purposes of CEQA and this Chapter 31 are to:

* * * *

(g) Disclose to the public the reasons why a governmental agency approved the project in the manner the agency chose if significant environmental effects are involved.

(h) Except where otherwise explicitly stated, nothing in this Chapter 31 shall be construed to impose procedures, standards, or substantive requirements that exceed those required by CEQA. The intent of this Chapter is to implement CEQA efficiently and expeditiously and not to expand the scope of environmental review or create additional procedural steps beyond those mandated by state law and regulations.

SEC. 31.03. SCOPE OF REQUIREMENTS.

(a) This Chapter adapts CEQA for use by the City. The emphasis of this Chapter is upon implementing procedures, which are expressly left for determination by local agencies, consistent with CEQA.

(b) The provisions of CEQA are not repeated here, but are expressly incorporated herein by reference as though fully set forth. ~~This Chapter is supplementary to CEQA.~~

SEC. 31.04. RESPONSIBILITY AND DEFINITIONS.

1 * * * *

2 (e) Where adoption of administrative regulations by resolution of the Planning
3 Commission after public hearing is specified herein, there shall be notice by publication in a
4 newspaper of general circulation in the City at least 20 days prior to the hearing and by
5 posting on the Planning Department's website (or, as technology evolves, on any other electronic,
6 digital, or publicly accessible platform that the Department determines appropriate, collectively
7 referred to herein as "website"), ~~in the offices of the Planning Department~~, with copies of the
8 proposed regulations sent to the Board of Supervisors and any other affected boards,
9 commissions, and departments of the City, and to all organizations and individuals who ~~have~~
10 ~~previously~~ requested such notice in writing. The decision of the Commission in adopting
11 administrative regulations shall be final.

12 (f) The City shall be responsible for conducting environmental review for projects
13 undertaken by the City within the City's territorial limits and for projects undertaken by the City
14 outside the territorial limits of the City.

15 (g) **Notifications.**

16 (1) Unless CEQA requires a mailed notice by the United States Postal Service
17 in hard copy form, or an organization or individual requests notice in hard copy form, a City
18 official may provide any mailed notice required by this Chapter using electronic mail
19 transmission whenever an organization or individual provides an email address to the City
20 official; provided that any notices required by this Chapter shall be provided by mail in hard
21 copy form to any organizations or individuals who have requested such notice in writing prior
22 to the effective date of this provision unless such organizations or individuals affirmatively
23 request electronic notification as provided below. The Planning Department may request that such
24 organizations or individuals confirm, from time to time, their desire to remain on the list to receive
25 mailed notices in hard copy form, and may update the list accordingly, including removing recipients

1 that have not confirmed their desire to remain on the list.

2 (2) **Electronic Notifications.** The Environmental Review Officer shall
3 ~~implement~~ maintain an electronic notification system for the notification requirements in this
4 Chapter 31. ~~The Environmental Review Officer shall offer interested organizations and individuals the~~
5 ~~opportunity to subscribe to an automated electronic mail notification system. The system shall~~
6 ~~distribute all notifications required by this Chapter to subscribers. Subscribers shall have the option to~~
7 ~~receive electronic mail regarding all CEQA notifications or all CEQA notifications for: (i) a specific~~
8 ~~project; (ii) a specific neighborhood, as defined by the Planning Department for notification purposes;~~
9 ~~(iii) historic districts designated under Articles 10 or 11 of the Planning Code or listed on the National~~
10 ~~Register of Historic Places; (iv) exemption determinations; (v) negative declarations; and (vi)~~
11 ~~environmental impact reports. The Environmental Review Officer shall implement the electronic~~
12 ~~notification system within three months of the operative date of the ordinance enacting this provision of~~
13 ~~Chapter 31. In the event the system is not operable within such period, the Planning Department shall~~
14 ~~provide monthly status reports to the Board of Supervisors on the progress the Planning Department~~
15 ~~has made in implementing the electronic notification system.~~

16 (h) **Definitions.**

17 "Administrative Regulation" means a rule or regulation of general application adopted by the
18 Planning Commission to implement or interpret CEQA or this Chapter 31. The term does not include
19 necessary forms, checklists, or processing guidelines prepared or issued by the Environmental Review
20 Officer to administer CEQA.

21 "Approval Action" means:

22 (1) For a private project seeking an entitlement from the City and determined to
23 be exempt from CEQA:

24 (A) The first approval of the project in reliance on the exemption by the
25 City Planning Commission following a noticed public hearing, including, without limitation, a

1 discretionary review hearing as provided for in Planning Code Section 311 ~~or Section 312~~, or, if
2 no such hearing is required, either:

3 (B) The first approval of the project in reliance on the exemption by
4 another City commission, board or official following a noticed public hearing granting an
5 Entitlement of Use for the Whole of the Project; or

6 (C) The issuance of: (i) the a Building Permit; (ii) a Planning Department
7 Approval Letter; or (iii) another Entitlement of Use for the Whole of the Project in reliance on
8 the exemption without a noticed public hearing.

9 (2) For all other projects determined to be exempt from CEQA:

10 (A) The first approval of the project in reliance on the exemption by a
11 City decision-making body at a noticed public hearing; or

12 (B) If approved without a noticed public hearing, the decision by a City
13 department or official in reliance on the exemption that commits the City to a definite course of
14 action in regard to a project intended to be carried out by any person.

15 (3) For all projects determined to require the preparation of a negative
16 declaration or a mitigated negative declaration, the approval of the project by the first City
17 decision-making body that adopts the negative declaration or mitigated negative declaration
18 as provided for in Section 31.11(h) of this Chapter.

19 "Building Permit" means a permit issued by the Department of Building Inspection as
20 provided by Building Code Section 106A, including, without limitation, a site permit under as
21 defined in Building Code Section 106A.3.4.2.1, permits issued by the Airport's Building Inspection
22 and Code Enforcement Section in accordance with Title 24 of the California Code of Regulations; or
23 permits issued pursuant to the Port Building Standards Codes.

24 "Date of the Approval Action" means the date the City takes the action on the project
25 that is defined as the "Approval Action," regardless of whether the Approval Action is subject

1 to an administrative appeal.

2 "Entitlement of Use for the Whole of the Project" means an entitlement that authorizes
3 the project applicant to carry out the project as described in the CEQA ~~decision~~ determination
4 for the project. Incidental permits needed to complete a project, such as a tree removal permit
5 or a street encroachment permit that alone do not authorize the use sought, would not be an
6 Entitlement of Use for the Whole of the Project, unless such permit is the primary permit
7 sought for the project.

8 "General Plan Evaluation" means a determination that a project qualifies for a complete or
9 partial exemption from environmental review pursuant to CEQA Section 21083.3 and Guidelines
10 Section 15183, for projects consistent with a community plan or zoning.

11 "Planning Approval Letter" (also referred to as a Zoning Approval Letter) means a letter
12 confirming that the Planning Department has reviewed the project for compliance with the Planning
13 Code and other applicable land use regulations. This letter is issued as part of the Building Permit
14 approval and is an Approval Action in accordance with this Chapter.

16 SEC. 31.05. OFFICE OF ENVIRONMENTAL REVIEW.

17 * * * *

18 (c) ~~In addition to the powers and duties conferred below, the~~ The Environmental Review
19 Officer ~~may, upon delegation by the Planning Commission as to specific projects, take testimony at~~
20 ~~supplemental~~ shall hold public hearings ~~on draft environmental impact reports, in addition to, and not~~
21 ~~in lieu of, the hearing held by the Planning Commission as set forth in section 31.14 of this Chapter,~~
22 ~~and shall report to, and make all such testimony available to, the Planning Commission at a public~~
23 ~~hearing~~ when CEQA requires that a hearing be held to adopt findings regarding the implementation of
24 feasible mitigation measures pursuant to a General Plan Evaluation, or for other reasons.

25 (d) The Environmental Review Officer shall also take such measures, within ~~his or her~~

1 the Environmental Review Officer's powers, as may be necessary to assure compliance with this
2 Chapter 31 by persons, and officials, boards, commissions, departments or agencies outside
3 the Planning Department, and shall periodically review the effectiveness and workability of the
4 provisions of this Chapter 31 and recommend any refinements or changes that he or she may
5 deem appropriate for improvement of such provisions.

6 * * * *

7 (k) The Environmental Review Officer may delegate ~~his or her~~ the Environmental Review
8 Officer's responsibilities to an employee of the Office of Environmental Review. All references
9 herein to the Environmental Review Officer shall be deemed to include the Environmental
10 Review Officer's delegate.

11 (l) The Environmental Review Officer shall process applications for environmental
12 review in accordance with the requirements for equal treatment of permit applicants, unless
13 there is a written finding of a public policy basis for not doing so, as set forth in Campaign and
14 Governmental Conduct Code Section 3.400 and the written guidelines adopted by the
15 Planning Department as required by Section 3.400. ~~For purposes of Section 3.400, this Section of~~
16 ~~Chapter 31 and any corresponding written guidelines of the Planning Department, the Board finds that~~
17 ~~expediting environmental review out of order, on a priority basis for the purpose of expediting permit~~
18 ~~processing shall qualify as a public policy basis for projects consisting of: (1) publicly funded~~
19 ~~affordable housing projects that provide new affordable housing in 100 percent of the on-site dwelling~~
20 ~~units (where such units are rented or sold at the economic levels defined in Planning Code Section~~
21 ~~415); and (2) bicycle and pedestrian projects that are designed primarily to address public safety~~
22 ~~issues. When an application for environmental review for any project within one of the categories listed~~
23 ~~above is submitted to the Planning Department, the Environmental Review Officer shall, throughout all~~
24 ~~stages of the environmental review process, give precedence to all submittals associated with such~~
25 ~~project over other projects. The Planning Department also shall provide a written preliminary~~

1 ~~assessment of the eligibility of such projects for an exemption within 60 days of submittal of a complete~~
2 ~~Preliminary Project Assessment or equivalent application to the Planning Department. As part of the~~
3 ~~assessment, the Planning Department shall identify as feasible, based on the content of the submittal,~~
4 ~~the issues that may affect the type and schedule of the environmental review and the process for~~
5 ~~analysis of such issues.~~

6 (m) ~~The Environmental Review Officer shall prepare an annual report to the Planning~~
7 ~~Commission and the Board of Supervisors on all appeals filed under any of the appeal provisions of~~
8 ~~this Chapter 31. The first annual report shall be filed approximately one year after the effective date of~~
9 ~~this provision of Chapter 31. To reflect current standards, methodologies, or technological changes,~~
10 ~~the Environmental Review Officer may refine or update adopted mitigation measures when tiering from~~
11 ~~a program-level environmental document or reviewing a new proposed approval for an already~~
12 ~~approved project, including mitigation measures adopted by the Planning Commission or the Board of~~
13 ~~Supervisors, without requiring a new approval from those bodies. The Environmental Review Officer~~
14 ~~may do so if the updated measures would be equally effective as the adopted measures, the change~~
15 ~~would not create new significant impacts or substantially increase the severity of already identified~~
16 ~~significant impacts, and the decision is supported by substantial evidence.~~

18 ARTICLE II: PROJECTS COVERED

19 * * * *

21 SEC. 31.07. LISTING OF NON-PHYSICAL AND MINISTERIAL PROJECTS.

22 (a) The Environmental Review Officer shall maintain a listing of types of nonphysical
23 and ministerial projects excluded from CEQA. Such listing shall be modified over time as the
24 status of types of projects may change under applicable laws, ordinances, rules and
25 regulations. The listing shall not be considered ~~totally inclusive~~ exhaustive, and may at times

1 require refinement or interpretation on a case-by-case basis. ~~When the Environmental Review~~
2 ~~Officer proposes to modify such listing, notice shall be provided on the Planning Commission agenda~~
3 ~~prior to such modification. Any person who may consider any modification to be incorrect may appeal~~
4 ~~such modification to the Planning Commission within twenty (20) days of the date of the Planning~~
5 ~~Commission agenda on which notice of such modification was posted. The Planning Commission may~~
6 ~~affirm, modify or disapprove such modification, and the decision of the Planning Commission shall be~~
7 ~~final.~~

8 (b) Such listing of excluded projects and modifications thereto shall be kept posted
9 on the Planning Department's website. ~~in the offices of the Planning Department, and copies thereof~~
10 ~~shall be sent to the Board of Supervisors and all other affected boards, commissions and departments~~
11 ~~of the City.~~

13 **SEC. 31.08. EXEMPTIONS.**

14 (a) CEQA provides that certain projects are exempt from CEQA because: the project
15 is exempt by statute ("statutory exemption"); the project is in a class of projects that generally
16 do not have a significant effect on the environment ("categorical exemption"); CEQA
17 streamlining procedures allow reliance on a prior environmental document prepared on a
18 zoning or planning level decision, for example, as provided in community plan areas and for
19 specified urban infill projects (~~"community plan exemption"~~ "General Plan Evaluation"), except as
20 might be necessary to examine whether there are project-specific significant effects, which
21 are peculiar to the project or its site; or the activity is covered under the general rule that
22 CEQA applies only to projects that have the potential for causing a significant effect on the
23 environment, thus, where it can be seen with certainty that there is no possibility that the
24 activity in question may have a significant effect on the environment, the activity is not subject
25 to CEQA (~~"general rule exclusion"~~ "common sense exemption"). Unless otherwise specifically

1 stated, reference in this Chapter 31 to “exemptions” or “exempt from CEQA” or an “exemption
2 determination” shall collectively refer to statutory exemptions, categorical exemptions, General
3 Plan Evaluations, or common sense exemptions ~~community plan exemptions and general rule~~
4 ~~exclusions.~~

5 (b) For categorical exemptions:

6 (1) Each public agency must list the specific activities that fall within each such
7 class, subject to the qualification that these lists must be consistent with both the letter and
8 the intent of the classes set forth in CEQA.

9 (2) The Environmental Review Officer shall maintain the required list of the
10 types of projects which are categorically exempt, and shall post it ~~in the offices of the Planning~~
11 ~~Department and~~ on the Planning Department website and shall provide it to all City
12 departments. Such list shall be kept up to date in accordance with any changes in CEQA and
13 any changes in the status types of local projects that are categorically exempt. ~~The initial list and~~
14 ~~any additions, deletions and modifications thereto shall be adopted as administrative regulations by~~
15 ~~resolution of the Planning Commission after public hearing, according to the procedure set forth in~~
16 ~~Section 31.04(e) of this Chapter.~~

17 (3) ~~CEQA allows public agencies to request that the Secretary of the Resources Agency~~
18 ~~make additions, deletions and modifications to the classes of projects listed as categorically exempt in~~
19 ~~CEQA. The Planning Commission shall make any such requests, after a public hearing thereon held~~
20 ~~according to the procedure specified in Section 31.04(e) of this Chapter for adoption of administrative~~
21 ~~regulations.~~

22 (c) The Environmental Review Officer may create necessary forms, checklists and
23 processing guidelines to aid the Planning Department and other departments in determining
24 whether a project may be exempt in accordance with the letter and the intent expressed in
25 CEQA and with the administrative regulations adopted by the Planning Commission.

1 (d) The Environmental Review Officer shall advise other departments of the
2 requirements of CEQA for determining whether a project is exempt from environmental
3 review. The Environmental Review Officer may delegate the determination whether a project
4 is exempt from CEQA to other departments, provided that other departments shall consult
5 with the Environmental Review Officer regarding the application of exemptions. Further, at the
6 time of each exemption determination, such other departments shall inform the Environmental
7 Review Officer and provide to the Environmental Review Officer a copy of the exemption
8 determination ~~containing the information specified in Section 31.08(e) of this Chapter 31.~~ The
9 Environmental Review Officer shall be responsible for all determinations so delegated to other
10 departments. When the Planning Department or other City department determines that a
11 project is exempt from CEQA, the issuance of the exemption determination shall be
12 considered an exemption determination by the Planning Department. The Environmental
13 Review Officer shall post on its website the same information about exemption determinations
14 issued by other departments as it provides for exemption determinations issued by the
15 Planning Department.

16 (e) When the Environmental Review Officer, or any other department to which the
17 Environmental Review Officer has delegated responsibility pursuant to Section 31.08(d)
18 above, has determined that a project is exempt from CEQA, ~~the following provisions~~ they shall
19 post the exemption on the Planning Department's website. ~~apply:~~

20 ~~(1) Posting Exemptions Determinations.~~

21 ~~(A) For all exemptions determinations, the Environmental Review Officer shall~~
22 ~~post on the Planning Department website the following information about each exemption~~
23 ~~determination: (1) a project description in sufficient detail to convey the location, size, nature and~~
24 ~~other pertinent aspects of the scope of the proposed project as necessary to explain the applicability of~~
25 ~~the exemption; (2) the type or class of exemption determination applicable to the project; (3) other~~

1 ~~information, if any, supporting the exemption determination; (4) the Approval Action for the project, as~~
2 ~~defined in Section 31.04(h); and (5) the date of the exemption determination.~~

3 ~~(B) For projects that involve the issuance of multiple discretionary permits or~~
4 ~~other project approvals, in addition to the requirements of Section 31.08(e)(1)(A), the Environmental~~
5 ~~Review Officer shall describe and evaluate the whole of the project that will result from all~~
6 ~~discretionary approvals and identify any additional discretionary approvals required other than the~~
7 ~~Approval Action that are known to the Environmental Review Officer at the time of the issuance of the~~
8 ~~exemption determination, and post this information on the Planning Department website.~~

9 ~~(2) The Environmental Review Officer may issue a Certificate of Exemption from~~
10 ~~Environmental Review by preparing a written exemption determination containing the information in~~
11 ~~Section 31.08(e)(1), and by posting a copy in the offices of the Planning Department and on the~~
12 ~~Planning Department website, and by mailing copies to the applicant, the board(s), commission(s) or~~
13 ~~department(s) that will carry out or approve the project, and to any organizations and individuals who~~
14 ~~previously have requested such notice in writing.~~

15 ~~(32) The Environmental Review Officer shall prepare a Certificate of Exemption from~~
16 ~~Environmental Review or comparable written exemption determination and provide notice to the public~~
17 ~~as provided for in Section 31.08(e)(2) for all projects involving: (A) any historical resources, defined as~~
18 ~~any buildings and sites listed individually or located within districts (i) listed in Planning Code Articles~~
19 ~~10 or 11, on an historic resource survey that has been adopted or officially recognized by the City, on~~
20 ~~the California Register or determined eligible for listing on the California Register by the State~~
21 ~~Historical Resources Commission, including, without limitation, any location listed on or determined~~
22 ~~eligible for the National Register of Historic Places, or (ii) a resource that the Environmental Review~~
23 ~~Officer determines, based on substantial evidence, to be a historical resource under Public Resources~~
24 ~~Code Section 5024.1; (B) any Class 31 categorical exemption; (C) any demolition as defined in~~
25 ~~Planning Code Section 317 or in Planning Code Section 1005(f) of an existing structure; (D) any Class~~

1 ~~32 categorical exemption; or (E) any community plan exemption.~~

2 (f) **Informing the Public of the Approval Action for a Project as Part of Public**
3 **Hearing Notice.**

4 (1) When the Planning Department or other City department provides notice of
5 a public hearing on the Approval Action for a project that it has determined to be exempt from
6 CEQA, the notice shall:

7 (A) Inform the public of the exemption determination and how the public
8 may obtain a copy of the exemption-determination;

9 (B) Inform the public of its appeal rights to the Board of Supervisors with
10 respect to the CEQA exemption determination following the Approval Action and within the
11 time frame specified in Section 31.16 of this Chapter; and

12 (C) Inform the public that under CEQA, in a later court challenge a
13 litigant may be limited to raising only those issues previously raised at a hearing on the project
14 or in written correspondence delivered to the Board of Supervisors, Planning Commission,
15 Planning Department or other City board, commission or department at, or prior to, such
16 hearing, or as part of the appeal hearing process, if any, on the CEQA decision.

17 (2) Additionally, when the Planning Department provides a notice under
18 Planning Code Section 31.1 ~~or Section 31.2~~ of the opportunity to request a discretionary review
19 hearing before the Planning Commission on a Building Permit application, the notice shall:

20 (A) Contain the information required by this Section 31.08(f) in addition
21 to any notice requirements in the Planning Code;

22 (B) Inform the notification group that if a discretionary review hearing is
23 requested before the Planning Commission, the Approval Action for the project under this
24 Chapter 31 will occur upon the Planning Commission's approval of the Building Permit
25 application, if such approval is granted; and

1 (C) Inform the notification group that if a discretionary review hearing is
2 not requested, the Approval Action for the project will occur upon the issuance of a Building
3 Permit by the Department of Building Inspection, if such permit is granted. The notice also
4 shall advise the notification group of how to request information about the issuance of the
5 Building Permit.

6 (g) A City board, commission, department, or official that grants the Approval Action
7 for a project of the type defined in Section 31.16(e)(2)(B) of this Chapter, which Approval
8 Action is taken without a noticed public hearing as provided for in Section 31.08(f) of this
9 Chapter, shall thereafter arrange for the Planning Department to post on the Planning
10 Department's website a written decision or written notice of the Approval Action for the project
11 that informs the public of the first date of posting on the website and advises the public that
12 the exemption determination may be appealed to the Board of Supervisors as provided in
13 Section 31.16(e)(2)(B) of this Chapter within 30 days after the first date of posting of the
14 notice.

15 ~~(h) **Filing Notice of Exemption.** After the City has decided to carry out or approve the project~~
16 ~~and the project is considered finally approved as provided for in Section 31.16(b)(11), in accordance~~
17 ~~with CEQA procedures, the Environmental Review Officer may file a notice of exemption with the~~
18 ~~county clerk in the county or counties in which the project is to be located. The Planning Department~~
19 ~~shall also post a copy of the notice of exemption in the offices of the Planning Department and on the~~
20 ~~Planning Department website, and mail a copy of the notice of exemption to any organizations and~~
21 ~~individuals who previously have requested such notice in writing.~~

22 ~~(i) **Modification of Exempt Project.**~~

23 ~~(1) Where a change occurs to a project that the Environmental Review Officer has~~
24 ~~determined to be exempt, prior to any subsequent approval actions, the Environmental Review Officer~~
25 ~~shall determine whether the change is a substantial modification that requires reevaluation as provided~~

1 ~~for in Section 31.19(b) of this Chapter 31. A substantial modification of an exempt project requiring~~
2 ~~reevaluation under Section 31.19(b) shall mean either:~~

3 ~~(A) A change in the project as described in the original application upon which~~
4 ~~the Environmental Review Officer based the exemption determination, or in the exemption~~
5 ~~determination posted on the Planning Department website at the time of issuance, which would~~
6 ~~constitute an expansion or intensification of the project as defined in the Planning Code. An expansion~~
7 ~~or intensification of the project as defined in the Planning Code includes, but is not limited to: (A) a~~
8 ~~change that would expand the building envelope or change the use that would require public notice~~
9 ~~under Planning Code Sections 311 or 312, or (B) a change in the project that would constitute a~~
10 ~~demolition under Planning Code Sections 317 or 1005(f).~~

11 ~~(B) New information or evidence of substantial importance presented to the~~
12 ~~Environmental Review Officer that was not known and could not have been known with the exercise of~~
13 ~~reasonable diligence at the time the Environmental Review Officer issued the exemption determination~~
14 ~~that shows the project no longer qualifies for the exemption.~~

15 ~~(2) When the Environmental Review Officer determines that a change in a project is a~~
16 ~~substantial modification, the Environmental Review Officer shall make a new CEQA decision as~~
17 ~~provided for under Section 31.19(b) of this Chapter 31. The Planning Department will require payment~~
18 ~~of fees as defined in the Department's fee schedule for the applicable type of environmental review.~~
19 ~~When the Planning Commission or Planning Department renders a new CEQA decision for a project~~
20 ~~after the Approval Action, as provided for in Section 31.19(b), and the City takes a new Approval~~
21 ~~Action for the project in reliance on the new CEQA decision, the new CEQA decision may be appealed~~
22 ~~in accordance with the provisions of Section 31.16 of this Chapter, as to those issues associated with~~
23 ~~the project changes since the original exemption determination.~~

24 ~~(3) When the Environmental Review Officer determines that a change in an exempt~~
25 ~~project is not a substantial modification, the Environmental Review Officer shall post a notice of the~~

determination in the offices of the Planning Department and on the Planning Department website and mail such notice to the applicant, board(s), commission(s) or department(s) that will carry out or approve the project, and to any organizations and individuals who previously have requested such notice in writing.

~~(j) Appeal of a Determination That Change in Exempt Project Is Not a Substantial Modification.~~

~~(1) Within 10 days of the posting of the notice of a determination that a change in an exempt project is not a substantial modification as defined in 31.08(i), an appeal may be filed with the Environmental Review Officer, who is provided for in Section 31.05, including subsection (k), requesting that the Environmental Review Officer reverse the determination and render a new CEQA decision for the project. Such an appeal is not an appeal of a CEQA decision under the California Environmental Quality Act and shall not delay or suspend any permit approval or other discretionary approval authorizing the change in the project, or suspend any construction activity.~~

~~(2) If such an appeal is filed when a regularly scheduled meeting of the Planning Commission will be held within 20 days of the filing of the appeal, the Environmental Review Officer shall hold a noticed public hearing on the day of a Planning Commission meeting held within such 20-day period, unless the period between the filing of the appeal and the Planning Commission meeting is insufficient to notice the public hearing. If no Planning Commission meeting is held within the 20-day period, or the period between the filing of appeal and the Planning Commission meeting within 20 days of the appeal is insufficient to notice the public hearing, the hearing shall take place on the day of one of the next two regularly scheduled Planning Commission meetings after such 20-day period.~~

~~(3) At the public hearing, the Environmental Review Officer shall reconsider the prior determination in light of all information provided by all parties present, including any project sponsor, as well as written information submitted at or before the public hearing.~~

~~(4) If after such reconsideration, the Environmental Review Officer determines that the~~

1 ~~original determination was in error, the Environmental Review Officer shall render a new CEQA~~
2 ~~decision for the project in accordance with the requirements of CEQA and this Chapter 31. Any prior~~
3 ~~permit approval or other discretionary approval authorizing the change in the project shall be~~
4 ~~suspended by the decision maker who approved the project until the Environmental Review Officer~~
5 ~~issues a new CEQA decision. If the Environmental Review Officer determines that the project as~~
6 ~~modified is exempt from CEQA and makes a new exemption determination in accordance with this~~
7 ~~Chapter 31, any suspended approval shall be reinstated and valid as of the date of the original~~
8 ~~approval. However, if the Environmental Review Officer identifies a suspended approval as the~~
9 ~~Approval Action for the modified project, the date of the Approval Action for the modified project, for~~
10 ~~purposes of this Chapter 31 only, shall be the date the approval is reinstated. If the Environmental~~
11 ~~Review Officer determines that the modified project is not exempt, and an initial study is required, any~~
12 ~~prior approval for the modified project shall be void.~~

13 ~~(5) If after such reconsideration, the Environmental Review Officer determines that the~~
14 ~~original decision was not in error, the original determination of the Environmental Review Officer~~
15 ~~shall be final and no further appeal to any body of the City and County of San Francisco of the~~
16 ~~determination that the change in the project is not a substantial modification shall be granted,~~
17 ~~including without limitation, the Board of Appeals.~~

18 ~~(6) The Environmental Review Officer shall issue a written decision on the appeal~~
19 ~~within 14 days of the public hearing, and an oral report of the decision shall be provided to the~~
20 ~~Planning Commission at the next possible meeting after such decision.~~

21 ~~(7) To the extent feasible, and subject to the budgetary and fiscal provisions of the~~
22 ~~Charter, such hearing shall be video-recorded and broadcast by the official television channel of the~~
23 ~~City and County of San Francisco. At a minimum, such hearing shall be video-recorded and made~~
24 ~~available on the website of the City and County of San Francisco.~~

25 ~~(8) The Planning Department may adopt additional procedures for such appeals.~~

1

2 **ARTICLE III: EVALUATIONS**

3

4 **SEC. 31.09. DETERMINATION OF NEED FOR EVALUATION.**

5 Upon receiving ~~an environmental evaluation~~ a project application ~~for a project~~; upon
6 referral of a project by the board, commission or department that is to carry out or approve the
7 project; or through such other process for rendering an exemption determination as the
8 Environmental Review Officer shall authorize, the Environmental Review Officer shall
9 determine whether such project is exempt from environmental review. For projects that are
10 exempt from CEQA, the Environmental Review Officer shall determine whether such project is exempt
11 within 30 days of receiving a complete project application. For all projects that are not exempt from
12 CEQA, prior to the City's decision as to whether to carry out or approve the project, the
13 Environmental Review Officer shall conduct an initial study to establish whether a negative
14 declaration or an environmental impact report is required. In the event it is clear at the outset
15 that an environmental impact report is required, the Environmental Review Officer may make
16 an immediate determination and dispense with the initial study.

17

18 **SEC. 31.10. INITIAL EVALUATION OF PROJECTS.**

19 (a) Each ~~environmental evaluation~~ project application or referral shall include a project
20 description using as its base the environmental information form set forth as Appendix H of
21 the CEQA Guidelines, which form shall be supplemented to require additional data and
22 information applicable to a project's effects, ~~including consistency with the environmental issues~~
23 ~~included in the Eight Priority Policies set forth in Section 101.1 of the Planning Code and incorporated~~
24 ~~into the General Plan; shadow impacts, including the analysis set forth in Planning Code Section 295;~~
25 ~~and such other data and information specific to the urban environment of San Francisco or to the~~

1 ~~specific project.~~ Each ~~environmental evaluation~~ project application or referral shall be certified as
2 true and correct by the applicant or referring board, commission, or department. Each initial
3 study shall include an identification of the environmental effects of a project using as its base
4 the environmental checklist form set forth in Appendix G of the CEQA Guidelines and
5 addressing each of the questions from the checklist form that are relevant to a project's
6 environmental effects; provided that the checklist form ~~shall~~ may be supplemented to address
7 additional environmental effects; ~~including consistency with the environmental issues included in the~~
8 ~~Eight Priority Policies set forth in Section 101.1 of the Planning Code and incorporated into the~~
9 ~~General Plan, shadow impacts, including the analysis set forth in Planning Code Section 295, and such~~
10 ~~other environmental effects~~ specific to the urban environment of San Francisco or to the specific
11 project.

12 * * * *

13
14 **SEC. 31.11. NEGATIVE DECLARATIONS OR MITIGATED NEGATIVE**
15 **DECLARATIONS.**

16 * * * *

17 (b) The Environmental Review Officer shall first prepare a negative declaration on a
18 preliminary basis, and shall post a copy of the proposed negative declaration ~~in the offices of~~
19 ~~the Planning Department and~~ on the Planning Department website.

20 (c) The Environmental Review Officer shall provide a notice of intent to adopt a
21 negative declaration ("notice of intent") to the public, responsible agencies, trustee agencies, and
22 the county clerk of each county within which the proposed project is located. ~~those persons required by~~
23 ~~CEQA.~~ In each instance, the Environmental Review Officer shall provide notice by at least one
24 of the following procedures, but shall retain discretion to provide notice in additional ways:

25 ~~(1) Mail to the applicant and the board(s), commission(s) or department(s) that will~~

1 ~~carry out or approve the project.~~

2 ~~(2) Publication in a newspaper of general circulation in the City.~~

3 ~~(3) Posting in the offices of the Planning Department.~~

4 (41) Posting ~~on~~in the area where the ~~subject site project is to be located~~. The
5 Planning Department shall ~~develop~~maintain guidance on the requirements for posting to assure
6 that posters are visible from the closest public street or other public space.

7 (52) ~~Mailing to the owners of all real property, and to the extent practicable, the~~
8 ~~residential occupants, within the area that is the subject of the negative declaration and within 300 feet~~
9 ~~of all exterior boundaries of such area, and by mail to all organizations and individuals who have~~
10 ~~previously requested such notice in writing, sufficiently prior to adoption of the negative declaration to~~
11 ~~allow the public and agencies a review period of not less than 20 days, or 30 days if a 30-day~~
12 ~~circulation period is required by CEQA. In the case of City-sponsored projects that involve rezonings,~~
13 ~~Area Plans or General Plan amendments and are either citywide in scope or the total area of land that~~
14 ~~is part of the project, excluding the area of public streets and alleys, is 20 acres or more, the~~
15 ~~Environmental Review Officer shall provide notice by mail to the owners, and to the extent practicable,~~
16 ~~the residential occupants, within the exterior boundaries of the project area, and to owners and~~
17 ~~occupants of the property contiguous to the project, and~~ to all organizations and individuals who
18 ~~previously~~ requested such notice in writing.

19 (3) Publishing at least one time in a newspaper of general circulation in the area
20 affected by the proposed project. If more than one area is affected, the notice shall be published in the
21 newspaper of largest circulation from among the newspapers of general circulation in those areas.

22 (d) The notice of intent shall specify the period during which comments are to be
23 received, the date, time, and place of any public hearings on the project when known to the
24 Planning Department at the time of the notice, a brief description of the project and its
25 location, the presence of the site on any of the lists enumerated under Section 65962.5 of the

1 Government Code, the address where copies of the negative declaration and all documents
2 referenced in the negative declaration are available for review, and the Planning Department
3 staff contact. ~~The notice of intent shall include a statement that no appeal of the negative declaration~~
4 ~~to the Board of Supervisors under Section 31.16 of this Chapter will be permitted unless the appellant~~
5 ~~first files an appeal of the preliminary negative declaration to the Planning Commission, and any other~~
6 ~~information as required by CEQA.~~

7 ~~(e) Within 20 days, or 30 days if required by CEQA, following the publication of the notice of~~
8 ~~intent, any person may appeal the proposed negative declaration to the Planning Commission,~~
9 ~~specifying the grounds for such appeal, or submit comments on the proposed negative declaration.~~

10 ~~(f) The Planning Commission shall schedule a public hearing on any such appeal within not~~
11 ~~less than 14 nor more than 30 days after the close of the appeal period. Notice of such hearing shall be~~
12 ~~posted in the offices of the Planning Department and on the Planning Department website, and shall be~~
13 ~~mailed to the appellant, to the applicant, to the board(s), commission(s) or department(s) that will~~
14 ~~carry out or approve the project, to any individual or organization that has submitted comments on the~~
15 ~~proposed negative declaration, and to any other individuals or organizations that previously have~~
16 ~~requested such notice in writing.~~

17 ~~(g) After holding such hearing the Planning Commission shall affirm the proposed negative~~
18 ~~declaration if it finds that the project could not have a significant effect on the environment, may refer~~
19 ~~the proposed negative declaration back to the Planning Department for specified revisions, or shall~~
20 ~~overrule the proposed negative declaration and order preparation of an environmental impact report if~~
21 ~~it finds substantial evidence to support a fair argument that the project may have a significant effect on~~
22 ~~the environment.~~

23 (e) Members of the public, and responsible and trustee agencies shall have 20 days, or 30 days
24 if required by CEQA, to review and submit comments on the proposed negative declaration. The
25 Environmental Review Officer may revise the proposed negative declaration to incorporate information

1 submitted in the comments, provided, however, that the revisions do not constitute a substantial
2 revision, as defined in CEQA Guideline section 15073.5. The Environmental Review Officer shall keep
3 a complete administrative record of proceedings in each case in which a negative declaration is
4 prepared.

5 (hf) ~~If the proposed negative declaration is not appealed as provided herein, or if it is affirmed~~
6 ~~on appeal, the negative declaration shall be considered final, subject to any necessary modifications.~~
7 ~~Thereafter, the~~The first City decision-making body to act on approval of the project shall review
8 and consider the information contained in the ~~final~~ negative declaration, together with any
9 comments received during the public review process and any revisions made to the negative
10 declaration after the close of the comment period. ~~and, Thereafter,~~ upon making the findings as
11 required by CEQA, it shall adopt the negative declaration, prior to approving the project. A
12 public notice of the proposed action to adopt the negative declaration and take the Approval
13 Action for the project shall advise the public of its appeal rights to the Board of Supervisors
14 with respect to the negative declaration following the Approval Action in reliance on the
15 negative declaration and within the time frame specified in Section 31.16 of this Chapter. All
16 decision-making bodies shall review and consider the negative declaration and make findings
17 as required by CEQA prior to approving the project.

18 (ig) At the time the City adopts a mitigated negative declaration, the decision-making
19 body shall also adopt a program for reporting on or monitoring the mitigation measures for the
20 project that it has either required or made a condition of approval to mitigate or avoid
21 significant environmental effects.

22 (jh) After the City has decided to carry out or approve the project and the project is
23 considered finally approved as provided for in Section 31.16(b)(11), in accordance with CEQA
24 procedures, and upon the payment of required fees by the project sponsor, the Environmental
25 Review Officer shall file a notice of determination with the county clerk in the county or

counties in which the project is to be located. If required by CEQA, the notice of determination shall also be filed with the California Office of ~~Planning and Research~~ Land Use and Climate Innovation. When the Environmental Review Officer files a notice of determination with the county clerk or the California Office of ~~Planning and Research~~ Land Use and Climate Innovation or both, the Planning Department also shall post a copy of the notice of determination ~~in the offices of the Planning Department and~~ on the Planning Department website, and mail a copy of the notice of determination to any organizations and individuals who ~~previously have~~ requested such notice in writing.

SEC. 31.12. DETERMINATIONS THAT ENVIRONMENTAL IMPACT REPORTS ARE REQUIRED.

When the Environmental Review Officer determines that an environmental impact report is required by CEQA, the Environmental Review Officer shall distribute a notice of preparation in the manner and containing the information required by CEQA and provide such other notice as required by CEQA. In addition, the Environmental Review Officer shall prepare a notice advising the public of the notice of preparation and of any scheduled scoping meetings ~~and publish the notice of preparation in a newspaper of general circulation in the City, and~~ post the notice of preparation ~~in the offices of the Planning Department and~~ on the Planning Department website, and mail the notice of preparation ~~to the applicant, the board(s), commission(s) or department(s) that will carry out or approve the project and to~~ all organizations and individuals who ~~have previously~~ requested such notice in writing.

SEC. 31.13. DRAFT ENVIRONMENTAL IMPACT REPORTS.

* * * *

(b) The applicant or the board, commission or department that is to carry out or

1 approve the project shall submit to the Environmental Review Officer such data and
2 information as may be necessary to prepare the draft EIR. If such data and information are
3 not submitted, the Environmental Review Officer may suspend work on the draft EIR. ~~The data~~
4 ~~and information submitted shall, if the Environmental Review Officer so requests, be in the form of all~~
5 ~~or a designated part or parts of the proposed draft EIR itself, although the~~ The Environmental
6 Review Officer shall ~~in any event make his or her own~~ conduct all evaluation and analysis and
7 exercise ~~his or her~~ independent judgment in ~~preparation of~~ preparing the draft EIR for public
8 review.

9 (c) During preparation of the draft EIR, the Environmental Review Officer may consult
10 with any person having knowledge or interest concerning the project. If ~~he/she~~ the
11 Environmental Review Officer has not already done so in accordance with Section 31.10 above,
12 in cases in which the project is to be carried out or approved by more than one public agency,
13 the Environmental Review Officer shall consult with all other public agencies that are to carry
14 out or approve the project.

15 (d) When the draft EIR has been prepared, the Environmental Review Officer shall file
16 a notice of completion of such draft with the California Office of ~~Planning and Research~~ Land Use
17 and Climate Innovation as required by CEQA and make the draft EIR available through the
18 State Clearinghouse if and as required by the California Office of ~~Planning and Research~~ Land
19 Use and Climate Innovation.

21 **SEC. 31.14. CONSULTATIONS AND COMMENTS.**

22 (a) The Environmental Review Officer shall provide public notice of the availability of
23 the draft EIR ~~and schedule a public hearing on the draft EIR with the Planning Commission. The~~
24 ~~Environmental Review Officer shall provide the notice of availability~~ at the same time that the
25 notice of completion is filed as required by CEQA. The notice of availability shall be posted on

1 the Planning Department's website and distributed at least 30 days prior to the scheduled public
2 hearing on the draft EIR on the first day of the draft EIR public comment period. The Environmental
3 Review Officer shall distribute the notice of availability in the manner required by CEQA, ~~and in~~
4 ~~each instance shall:~~ Specifically, the Environmental Review Officer shall (1) Send post the notice to
5 the public, and send to any public agencies that CEQA requires the lead agency to consult with
6 and request comments from on the draft EIR, and may send copies of the draft EIR to and
7 consult with other persons with special expertise with respect to any environmental impact
8 involved, including City agencies and commissions with special expertise, such as the Historic
9 Preservation Commission. In each instance, the Environmental Review Officer shall provide notice by
10 at least one of the following procedures, but shall retain discretion to provide notice in additional
11 ways, as needed:

12 (A) ~~In sending such notices and copies of the draft EIR, the Environmental~~
13 ~~Review Officer shall request comments on the draft EIR from such agencies and persons, with~~
14 ~~particular focus upon the sufficiency of the draft EIR in discussing possible effects on the environment,~~
15 ~~ways in which adverse effects may be minimized, and alternatives to the project.~~

16 (B) ~~For the types of projects set forth in Sections 31.08(e)(3)(A) and~~
17 ~~31.08(e)(3)(B) of this Chapter 31, and for any other projects that may be subject to the approval of the~~
18 ~~Historic Preservation Commission, the Environmental Review Officer shall send a copy of the draft~~
19 ~~EIR to the Historic Preservation Commission and obtain any comments that the Historic Preservation~~
20 ~~Commission has on the draft EIR at a noticed public meeting. The Planning Department shall schedule~~
21 ~~the public meeting at least seven days prior to any Planning Commission hearing on the draft EIR. But,~~
22 ~~if the calendars of the two commissions do not allow such scheduling without extending the noticed~~
23 ~~public comment period, the Planning Department shall schedule the public meeting as far in advance~~
24 ~~of the Planning Commission hearing as possible, consistent with not extending the public comment~~
25 ~~period.~~

1 (21) Posting in the area where the subject site project is to be located. ~~the notice in the~~
2 ~~offices of the Planning Department and on the Planning Department website.~~

3 (3) ~~Post on the subject site.~~ The Planning Department shall ~~develop~~ maintain
4 guidance on the requirements for posting to assure that posters are visible from the closest
5 public street or other public space.

6 (4) ~~Publish the notice in a newspaper of general circulation in the City.~~

7 (52) Mailing the notice to all owners and occupants of the property contiguous to the
8 project, to the applicant, the board(s), commission(s) or department(s) that will carry out or approve
9 the project, and to any individuals or organizations that ~~previously have~~ requested such notice in
10 writing. _

11 (3) Publishing at least one time in a newspaper of general circulation in the area
12 affected by the proposed project. If more than one area is affected, the notice shall be published in the
13 newspaper of largest circulation from among the newspapers of general circulation in those areas

14 (6) ~~Mail the notice to the owners of all real property, and to the extent practicable, the~~
15 ~~residential occupants, within the area that is the subject of the environmental impact report and within~~
16 ~~300 feet of all exterior boundaries of such area. In the case of City-sponsored projects that involve~~
17 ~~rezonings, area plans or General Plan amendments and are either citywide in scope or the total area of~~
18 ~~land that is part of the project, excluding the area of public streets and alleys, is 20 acres or more, the~~
19 ~~Environmental Review Officer shall provide notice by mail to the owners and, to the extent practicable,~~
20 ~~the residential occupants within the exterior boundaries of the project area, and to all organizations~~
21 ~~and individuals who previously requested such notice in writing.~~

22 (b) The notice of availability shall contain the information required by CEQA and in
23 each instance shall:

24 (1) State the starting and ending dates for the draft EIR review period during
25 which the Environmental Review Officer will receive comments, the manner in which comments

1 will be received, and if comments are not returned within that time it shall be assumed that the
2 agency or person has no comment to make. The public review period shall not be less than
3 30 days nor more than 60 days except under unusual circumstances. When a draft EIR is
4 submitted to the State Clearinghouse for review by state agencies, the public review period
5 shall not be less than 45 days, unless a shorter period, not less than 30 days, is approved by
6 the State Clearinghouse. The Planning Commission or the Environmental Review Officer
7 may, upon the request of an agency or person with special expertise from whom comments
8 are sought, grant an extension of time beyond the original period for comments, ~~but such~~
9 ~~extension shall not prevent with the holding of any hearing on the draft EIR for which notice has~~
10 ~~already been given.~~

11 ~~(2) State the time, place and date of the scheduled Planning Commission hearing on~~
12 ~~the draft EIR and all hearings at which the Environmental Review Officer will take testimony.~~

13 (32) State that only commenters on the Draft EIR will be permitted to file an
14 appeal of the certification of the Final EIR to the Board of Supervisors under Section 31.16 of
15 this Chapter.

16 (c) The Planning Department shall make the draft EIR available to the public upon the
17 date of the notice of availability. The Planning Department shall post a copy of the draft EIR
18 on the Planning Department website and provide a copy of the draft EIR to the ~~applicant and to~~
19 ~~such~~ board(s), commission(s), or department(s) and to any organizations or individuals who
20 ~~previously have~~ requested a copy in writing, in electronic form on a text searchable digital
21 storage device or by text searchable electronic mail transmission when an email address is
22 provided, unless a printed hard copy is specifically requested.

23 (d) Public participation, both formal and informal, shall be encouraged at all stages of
24 review, and written comments shall be accepted at any time up to the conclusion of the public
25 comment period. The Environmental Review Officer may give public notice at any formal

stage of the review process, beyond the notices required by this Chapter 31 and CEQA, in any manner the Environmental Review Officer may deem appropriate.

~~(e) The Planning Commission shall hold a public hearing on every draft EIR during the public comment period. The Environmental Review Officer may, upon delegation by the Planning Commission, take testimony at supplemental public hearing(s) on draft EIRs, in addition to, and not in lieu of, the hearing conducted by the Planning Commission, and shall report to and make all testimony received by the Environmental Review Officer available to the Planning Commission at a public hearing.~~

~~(f) To the extent practicable, any comments already received from any agency, organization or individual shall be available at the public hearing.~~

SEC. 31.15. FINAL ENVIRONMENTAL IMPACT REPORTS.

(a) A final EIR shall be prepared by, or at the direction of, the Environmental Review Officer, based upon the draft EIR, the consultations and comments received during the review process, and additional information that may become available. Not less than 10 days prior to the Planning Commission hearing to consider certification of the final EIR if public agencies have submitted comments on the draft EIR, the final EIR shall be made available to the public and to any board(s), commission(s) or department(s) that will carry out or approve the project.

(b) The final EIR shall ~~include~~ consist of the draft EIR, a list of agencies and persons consulted, the comments received, either verbatim or in summary, and a response to any comments that raise significant points concerning effects on the environment. The response to comments may take the form of revisions within the draft EIR, or by adding a separate section in the final EIR, or by providing an explanation in response to the comment.

(c) An administrative record of proceedings shall be kept of each case in which an EIR is prepared, including all comments received in writing ~~in addition to a record of the public~~

1 ~~hearing.~~ The final EIR shall indicate the location of such record. ~~The Environmental Review~~
2 ~~Officer shall cause the hearing on the draft EIR to be recorded by a phonographic reporter and~~
3 ~~transcribed and retained as part of the administrative record. Any separate or additional transcription~~
4 ~~of a hearing record shall be at the expense of the person requesting such transcription.~~

5 (d) When the final EIR has been prepared and in the judgment of the Planning
6 Commission it is adequate, accurate and objective, reflecting the independent judgment and
7 analysis of the Planning Commission, the Planning Commission shall certify its completion in
8 compliance with CEQA. The notice of the Planning Commission hearing on the certification of
9 the final EIR shall inform the public of its appeal rights to the Board of Supervisors with
10 respect to the final EIR within the time frame specified in Section 31.16 of this Chapter. The
11 certification of completion shall contain a finding as to whether the project as proposed will, or
12 will not, have a significant effect on the environment.

13 (e) After the City has decided to carry out or approve the project and the project is
14 considered finally approved as provided for in Section 31.16(b)(11), in accordance with CEQA
15 procedures ~~and upon the payment of required fees by the project sponsor,~~ the Environmental
16 Review Officer shall file a notice of determination with the county clerk in the county or
17 counties in which the project is to be located. If required by CEQA, the notice of determination
18 shall also be filed with the California Office of ~~Planning and Research~~Land Use and Climate
19 Innovation. The Environmental Review Officer shall also post the notice of determination ~~in the~~
20 ~~offices of the Planning Department and~~ on the Planning Department website, and mail a copy to
21 any organizations and individuals who ~~previously have~~ requested such notice in writing.
22

23 **SEC. 31.16. APPEAL OF CERTAIN CEQA DECISIONS.**

24 (a) **Decisions Subject to Appeal.** In accordance with the provisions set forth in this
25 Section 31.16, the following CEQA decisions may be appealed to the Board of Supervisors

1 (the “Board”): (1) certification of a final EIR by the Planning Commission; (2) adoption of a
2 negative declaration by the first decision-making body; and (3) determination by the Planning
3 Department or any other authorized City department that a project is exempt from CEQA;
4 provided, however, that when the Board is the first decision-making body for the project, no
5 administrative appeals are permitted under this Chapter.

6 (b) **Appeal Procedures.** In addition to the applicable requirements of Section
7 31.16(c) pertaining to EIRs, Section 31.16(d) pertaining to negative declarations or Section
8 31.16(e) pertaining to exemption determinations, the following requirements shall apply to an
9 appeal of any of the decisions listed in Section 31.16(a).

10 (1) The appellant shall submit a letter of appeal to the Clerk of the Board within
11 the time frames set forth in Sections 31.16(c), (d), or (e), as applicable. The letter of appeal
12 shall state the specific grounds for appeal, and shall be accompanied by a fee, as set forth in
13 Section 31.2221 of this Chapter, payable to the San Francisco Planning Department. The
14 appellant shall sign the letter of appeal, or may have an agent, file an appeal on ~~his or her~~ the
15 appellant’s behalf. The appellant shall submit with the appeal a copy of the CEQA decision
16 being appealed, if available, and otherwise shall submit it when available. The appellant shall
17 submit a copy of the letter of appeal and any other written materials submitted to the Clerk in
18 support of the appeal to the Environmental Review Officer at the time appellant submits the
19 letter of appeal to the Clerk of the Board. The submission to the Environmental Review Officer
20 may be made by electronic means. An appeal shall be accepted by the Clerk with notice given
21 to the appellants that the acceptance is conditioned upon the Planning Department
22 determining that the appeal of the CEQA decision, whether rendered by the Planning
23 Department or another City commission, department, agency or official, has been filed in a
24 timely manner, and the Clerk otherwise determining that the appeal complies with the
25 requirements of this section. The Planning Department shall make such determination within

1 three working days of receiving the Clerk's request for review. Within seven working days of
2 the filing of the appeal the Clerk shall mail notice to the appellants of the acceptance or
3 rejection of the appeal. The Clerk of the Board may reject an appeal if appellant fails to
4 comply with this Section 31.16(b)(1).

5 * * * *

6 (7) The Board shall act on an appeal within ~~30 days~~ two weeks of the date
7 scheduled for the hearing, provided that if ~~the full membership of the Board is not present~~ there is
8 no quorum of the Board on the last that day on which the appeal is set for a decision within said 30
9 days or if the Board is on recess, the Board may postpone a decision thereon until, but not later
10 than, ~~the full membership~~ the next hearing at which a quorum of the Board is present; ~~and provided~~
11 ~~further, if the Board of Supervisors does not conduct at least three regular Board meetings during such~~
12 ~~30 day period, the Board of Supervisors shall decide such appeal within 40 days of the time set for the~~
13 ~~hearing thereon or at the next regularly scheduled Board meeting should such deadline fall within a~~
14 ~~Board recess; and provided further that the latest date to which said decision may be so postponed~~
15 ~~under this Section shall be not more than 90 days from the expiration of the time frames set forth in~~
16 ~~Sections 31.16(c), (d), or (e), as applicable, for filing an appeal.~~

17 (8) The Board may affirm or reverse any CEQA decision by a vote of a majority
18 of all members of the Board. A tie vote shall be deemed to be disapproval of the CEQA
19 decision. The Board shall act by motion. The Board shall adopt findings in support of its
20 decision, which may include adoption or incorporation of findings made by the Planning
21 Commission, Environmental Review Officer, or other City department authorized to act on the
22 CEQA decision below. If the Board reverses the CEQA decision, the Board shall adopt
23 specific findings setting forth the reasons for its decision within two weeks of the reversal, or if the
24 Board is on recess, the Board may postpone a decision thereon until, but not later than, the next
25 hearing at which a quorum of the Board is present.

1 * * * *

2 (12) If a project applicant has provided timely and complete written notice of project
3 disapproval under subsections (h)(6)(D) and (h)(6)(E) of California Government Code section 65589.5,
4 also known as the Housing Accountability Act (as those sections may be amended from time to time),
5 the City shall issue a lawful determination, as defined in subsection (h)(7) of that section, within 90
6 days of that notice, or within 180 days of the notice if an extension has been invoked. This includes any
7 revisions to the prior CEQA decision and any appeals to the Board of Supervisors.

8 (c) **Appeal of Environmental Impact Reports.** In addition to those requirements set
9 forth in Section 31.16(b) above, the following requirements shall apply only to appeals of
10 EIRs.

11 (1) Any person or entity that has submitted comments to ~~the Planning~~
12 ~~Commission or~~ the Environmental Review Officer on a draft EIR, ~~either in writing~~ during the
13 public review period, ~~or orally or in writing at a public hearing on the EIR,~~ may appeal the
14 Planning Commission's certification of the final EIR.

15 (2) The appellant of a final EIR shall submit a letter of appeal to the Clerk of the
16 Board no later than ~~30~~ 15 days after the Planning Commission's certification of the EIR.

17 * * * *

18 (d) **Appeal of Negative Declarations.** In addition to those requirements set forth in
19 Section 31.16(b) above, the following requirements shall apply only to appeals of negative
20 declarations.

21 (1) Any person or entity that has ~~filed an appeal of~~ submitted comments on the
22 preliminary negative declaration with the ~~Planning Commission~~ Environmental Review Officer
23 during the public comment period provided by this Chapter 31 for filing comments on the
24 preliminary negative declaration may appeal the Planning ~~Commission's~~ Department's approval
25 of the final negative declaration.

1 (2) The appellant of a negative declaration shall submit a letter of appeal to the
2 Clerk of the Board ~~after the Planning Commission approves the final negative declaration and~~ within
3 ~~30~~ 15 days after the Date of the Approval Action for the project taken in reliance on the
4 negative declaration.

5 (3) The grounds for appeal of a negative declaration shall be limited to
6 whether, in light of the whole record before the Board, the negative declaration conforms to
7 the requirements of CEQA and there is no substantial evidence to support a fair argument that
8 the project may have a significant effect on the environment, and in the case of a mitigated
9 negative declaration, the adequacy and feasibility of the mitigation measures.

10 (4) The Board shall affirm the ~~Planning Commission approval of the~~ negative
11 declaration if it finds that the negative declaration conforms to the requirements of CEQA and
12 that the record does not include substantial evidence to support a fair argument that the
13 project may have a significant effect on the environment.

14 (5) The Board shall reverse the ~~Planning Commission approval of the~~ adoption of
15 the negative declaration if it finds that the negative declaration does not conform to the
16 requirements of CEQA or there is substantial evidence to support a fair argument that the
17 project may have a significant effect on the environment that has not been avoided or
18 mitigated to a less than significant level by mitigation measures or project modifications
19 agreed to by the project sponsor or incorporated into the project. If the Board reverses the
20 adoption of the ~~decision of the Planning Commission~~ negative declaration, it shall remand the
21 negative declaration to the Planning Department for further action consistent with the Board's
22 findings.

23 (A) In the event the Board remands the negative declaration to the
24 Planning Department for revision, the Environmental Review Officer shall finalize the revised
25 negative declaration and send notice to the public, as set forth in Section 31.11 of this

Chapter, of the availability of the revised negative declaration. ~~No appeal to the Planning Commission of the revised negative declaration shall be required. In the event~~ If an organization or individual wishes to appeal the revised negative declaration, such appeal shall be made directly to the Board of Supervisors within ~~30~~ 15 days of publication of the revised negative declaration and shall comply with the procedures set forth in this Section 31.16. The Board's subsequent review, if any, shall be limited to the portions of the negative declaration that the Planning Department has revised.

(B) In the event the Board determines that a project may have a significant effect on the environment that cannot be avoided or mitigated to a less than significant level and, therefore, an EIR is required, the Planning Department shall prepare an EIR in accordance with CEQA and this Chapter 31. Any subsequent appeal to the Board shall comply with the procedures set forth in this Section 31.16.

(e) **Appeal of Exemption Determinations.** In addition to those requirements set forth in Section 31.16(b) above, the following requirements shall apply to appeals of exemption_s determinations.

(1) Any person or entity may appeal the exemption determination by the Planning Department or other authorized City department to the Board.

(2) The appellant of an exemption determination shall submit a letter of appeal to the Clerk of the Board within the following time frames as applicable:

(A) For a private project seeking a permit, license or other entitlement for use for which the City otherwise provides an appeal process for the entitlement, the appeal of an exemption determination shall be filed after the Planning Department issues the exemption determination and within ~~30~~ 15 days after the Date of the Approval Action, regardless of whether the Approval Action is subject to a ~~shorter~~ different appeal period. Departments that issue permits or entitlements supported by exemption determinations shall

1 take steps as they determine appropriate to advise applicants seeking permits, licenses, or
2 other entitlements for use of the ~~30~~15-day appeal period for the exemption determination.

3 (B) For all projects not covered by Section (A):

4 (i) If the Approval Action is taken following a noticed public
5 hearing as provided for in Section 31.08(f) of this Chapter, the appeal of an exemption
6 determination shall be filed after the Planning Department issues the exemption determination
7 and within ~~30~~ 15 days after the Date of the Approval Action.

8 (ii) If the Approval Action is taken without a noticed public hearing
9 as provided for in Section 31.08(f) of this Chapter, the appeal of an exemption determination
10 shall be filed after the Planning Department issues the exemption determination and within ~~30~~
11 15 days after the first date the Planning Department posts on the Planning Department's
12 website a notice as provided in Section 31.08(g) of this Chapter.

13 (C) As to an exemption determination for a project for which no City
14 entity posted the exemption determination on the City's website or otherwise provided public
15 notice of the exemption determination under this Chapter 31, an appeal may be filed within ~~30~~
16 15 days following the appellant's discovery of the exemption determination.

17 * * * *

18
19 **~~SEC. 31.19. EVALUATION OF MODIFIED PROJECTS.~~**

20 ~~(a) After evaluation of a proposed project has been completed pursuant to this Chapter, a~~
21 ~~substantial modification of the project may require reevaluation of the proposed project.~~

22 ~~(b) When the Environmental Review Officer determines that a change in an exempt project is a~~
23 ~~substantial modification as defined in Section 31.08(i), the Environmental Review Officer shall make a~~
24 ~~new CEQA decision as provided in this Chapter.~~

1 ~~(1) If the Environmental Review Officer again determines that the project as modified~~
2 ~~is exempt, the Environmental Review Officer shall make a new exemption determination in accordance~~
3 ~~with the applicable provisions of Section 31.08(e).~~

4 ~~(2) If the Environmental Review Officer determines that the modified project is not~~
5 ~~exempt, an initial study shall be conducted as provided in this Chapter.~~

6 ~~(3) The Planning Department may issue guidance to other City departments in~~
7 ~~determining the type of project modification that might occur after an Approval Action that would~~
8 ~~require additional CEQA review. The guidance may also advise on the process and considerations that~~
9 ~~the Planning Department would use in such cases to determine whether to issue a new exemption~~
10 ~~determination or undertake further environmental review.~~

11 ~~(c) Where such a modification occurs as to a project for which a negative declaration has been~~
12 ~~adopted or a final EIR has been certified, the Environmental Review Officer shall reevaluate the~~
13 ~~proposed project in relation to such modification, and shall determine whether additional~~
14 ~~environmental review is required by this Chapter and CEQA.~~

15 ~~(1) If, on the basis of such reevaluation, the Environmental Review Officer determines,~~
16 ~~based on the requirements of CEQA, that no additional environmental review is necessary, this~~
17 ~~determination and the reasons therefor shall be noted in writing in the case record, and no further~~
18 ~~evaluation shall be required by this Chapter. Notice of any such written determination and the reasons~~
19 ~~therefor shall be posted in the Planning Department, and shall be mailed to the applicant, the board,~~
20 ~~commission or department that will carry out or approve the project, to any individual or organization~~
21 ~~that has commented on the environmental document, and to any other individual or organization~~
22 ~~requesting such notice in writing.~~

23 ~~(2) If, on the basis of such reevaluation, the Environmental Review Officer determines~~
24 ~~that additional environmental review is necessary, the project shall be considered a new project for~~
25 ~~purposes of environmental review pursuant to this Chapter. In that event, a new evaluation shall be~~

1 ~~completed prior to the decision by the City as to whether to carry out or approve the project as~~
2 ~~modified. CEQA sets forth specific requirements for the determination of whether a supplemental or~~
3 ~~subsequent EIR is necessary, as well as the process therefor.~~

4
5 **SEC. 31.2019. MULTIPLE ACTIONS ON PROJECTS.**

6 * * * *

7 **ARTICLE IV: FEES**

8 **SEC. 31.2120. ALLOCATION OF COSTS.**

9 * * * *

10 **SEC. 31.2221. FEES.**

11 (a) **Authorization of Fees.** The Planning Department shall charge fees to
12 compensate the Department for the cost of performing the activities and providing the
13 services described in Chapter 31 of this Code. Notwithstanding the procedures set forth in this
14 Section 31.2221, the Board of Supervisors may modify the fees by ordinance at any time.

15 * * * *

16
17 **SEC. 31.2322. OTHER FEES.**

18 * * * *

19 **(h) Deferred or Reduced Fee.**

20 * * * *

21 (2) An exemption from paying the full fees for an appeal of an environmental
22 determination to the Planning Commission or Board of Supervisors may be granted when the
23 requestor's income is not enough to pay the fee without affecting ~~his or her~~ the requestor's
24 ability to pay for the necessities of life, provided that the person seeking the exemption
25 demonstrates to the Director of Planning or ~~his/her~~ the Director's designee that he or she is

1 would be substantially affected by the proposed project.

2 * * * *

3
4 **SEC. 31.23.122.1. COMMUNITY PLAN FEES.**

5 (a) The Planning Department shall charge Community Plan Fees for environmental
6 applications filed in adopted Plan Areas ~~effective after July 1, 2005. The fee amounts shall be as~~
7 ~~stated in Section 4 of Ordinance No. 149-16, as amended by Ordinance No. _____, in Board of~~
8 ~~Supervisors File No. 250888~~, as stated in Section 31.2221(b) of this Code, and adjusted annually
9 in accordance with the procedure established under Section 31.2221(c).

10 * * * *

11 (c) Except as provided in Subsection (d) below for projects in the Transit Center
12 District area, if at the time of Community Plan adoption, a project application undergoing
13 review required amendments for height or bulk districts or General Plan amendments and
14 now complies with the Community Plan Zoning, the applicant may choose to pay either the
15 fees specified in Section 31.2221 or Section 31.2322.1. For projects that paid fees under
16 Section 31.2221 and opt to pay fees under Section 31.2322.1, the applicant shall withdraw the
17 application filed under Section 31.2221 and file a new application. Applicants that file a new
18 application and pay the Section 31.2322.1 fees shall be entitled to a refund under Section
19 31.2221(f).

20 (d) Projects in the Transit Center District area that require amendments for height or
21 bulk district or General Plan amendments at the time of project application shall pay the fees
22 specified in Subsection (b) above and the fees for projects determined not to qualify for a
23 Community exemption or exclusion. For projects that paid fees under Section 31.2221, the
24 applicant shall pay the difference between Section 31.2221 fees and the fees specified in this
25 Subsection (d).

1
2 **ARTICLE V: SEVERABILITY**

3 **SEC. 31.2423. SEVERABILITY.**

4 * * * *

5 (c) This Section 31.2423 shall apply to this Chapter 31 as it now exists and as it may
6 exist in the future, including all modifications thereof and additions and amendments thereto.
7

8 Section 4. Article 4 of the Planning Code is hereby amended by revising Section
9 415.6, to read as follows:

10 **SEC. 415.6. ON-SITE AFFORDABLE HOUSING ALTERNATIVE.**

11 * * * *

12 (j) **Benefits.** If the project sponsor elects to satisfy the affordable housing
13 requirements through the production of on-site affordable housing in this Section 415.6, the
14 project sponsor shall be eligible to receive a refund for only that portion of the housing project
15 which is affordable for the following fees: a Conditional Use authorization or other fee required
16 by Section 352 of this Code, if applicable; an environmental review fee required by
17 Administrative Code Section 31.2221, if applicable; a building permit fee required by Section
18 355 of this Code for the portion of the housing project that is affordable. The project sponsor
19 shall pay the building fee for the portion of the project that is market-rate. An application for a
20 refund must be made within six months from the issuance of the first certificate of occupancy.
21
22

23 Section 5. This section is uncodified.

24 Ordinance Nos. 161-13 (Board File No. 121019) and 181-13 (Board File No. 130464)
25 were enacted by the City in July and August 2013, respectively. Both ordinances contained

operative dates described as the later date of September 1, 2013, or five days after the Secretary of the Planning Commission provides a memorandum to the Clerk of the Board of Supervisors advising that the Planning Commission has held a public hearing on the Planning Department's updated website including specified CEQA information. After the ordinance became operative, the City Attorney directed the Publisher to update the affected published code provisions. The Editor's Notes reflecting the operative dates and publication that appear at the end of existing sections 31.05, 31.08, and 31.20 can be removed, as they are now outdated.

Section 6. Scope of Ordinance. In enacting this ordinance, the Board of Supervisors intends to amend only those words, phrases, paragraphs, subsections, sections, articles, numbers, punctuation marks, charts, diagrams, or any other constituent parts of the Municipal Code that are explicitly shown in this ordinance as additions, deletions, Board amendment additions, and Board amendment deletions in accordance with the "Note" that appears under the official title of the ordinance.

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Section 7. Effective Date. This ordinance shall become effective at 12:00 a.m. on the 31st day after enactment. Enactment occurs when the Mayor signs the ordinance, the Mayor returns the ordinance unsigned or does not sign the ordinance within ten days of receiving it,

1 or the Board of Supervisors overrides the Mayor's veto of the ordinance.

2
3 APPROVED AS TO FORM:
4 DAVID CHIU, City Attorney

5 By: /s/ Andrea Ruiz-Esquide
6 ANDREA RUIZ-ESQUIDE
7 Deputy City Attorney

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